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(12) **United States Design Patent** (10) **Patent No.:** **US D1,092,033 S**
Winfield (45) **Date of Patent:** **** Sep. 9, 2025**

(54) **SHOE**
(71) Applicant: **NIKE, Inc.**, Beaverton, OR (US)
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(73) Assignee: **NIKE, Inc.**, Beaverton, OR (US)
(**) Term: **15 Years**
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(52) **U.S. Cl.**
USPC **D2/972; D2/947**
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D2/924, 943–962, 969–978
CPC A43B 1/00; A43B 1/10; A43B 1/12; A43B
1/14; A43B 3/00; A43B 3/10; A43B 3/12;
A43B 3/14; A43B 5/00; A43B 5/001;
A43B 5/002; A43B 5/003; A43B 5/007;
A43B 5/008; A43B 5/02; A43B 5/06;
A43B 5/10; A43B 5/12; A43B 5/14;
A43B 13/00; A43B 13/02; A43B 13/023;
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13/34

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D312,919 S * 12/1990 Aveni D2/973
D330,451 S * 10/1992 Hatfield D2/970
D344,173 S 2/1994 Dolinsky
D349,391 S 8/1994 Yang
D385,996 S 11/1997 Tresser

D465,905 S * 11/2002 Meza D2/897
D490,232 S * 5/2004 Kuerbis D2/972
D498,583 S 11/2004 Yun
D526,114 S 8/2006 Drazic
D568,039 S 5/2008 Kuerbis
D645,651 S 9/2011 Mateo
D668,858 S 10/2012 Shaffer
D689,675 S 9/2013 Hardman
D722,425 S 2/2015 Cin
D769,602 S 10/2016 Mueller
D778,583 S 2/2017 Kanata
D781,550 S * 3/2017 Lee D2/972
D783,264 S * 4/2017 Hoellmueller D2/973

(Continued)

OTHER PUBLICATIONS

Nike Set to Release Metcon 1 OG Rod to Metcon X “Banned”,
HypeBeast.com, [online], [website visited May 12, 2025]. <URL:
<https://hypebeast.com/2024/6/nike-metcon-1-og-road-to-metcon-x-banned-release-info>> (Year: 2024).*

(Continued)

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(57) **CLAIM**

The ornamental design for a shoe as shown and described.

DESCRIPTION

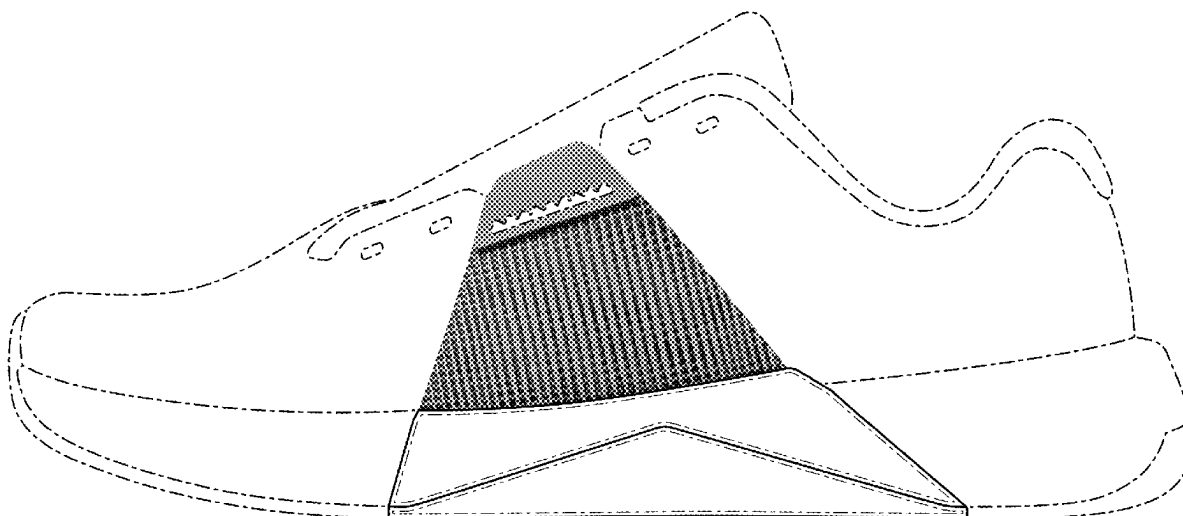
FIG. 1 is a front perspective view of a shoe showing my new design;

FIG. 2 is a side view thereof; and,

FIG. 3 is a rear perspective view thereof.

The broken line shape within the photographic area forms no part of the claimed design. The two regions bounded by broken lines in the lower part of the claimed region form no part of the claimed design. The broken lines depicting the remainder of the shoe form no part of the claimed design.

1 Claim, 3 Drawing Sheets



(56)

References Cited

U.S. PATENT DOCUMENTS

D789,673	S	*	6/2017	Rasmussen	D2/972
D789,674	S		6/2017	Williams, Jr.	
D790,841	S		7/2017	Nethongkome	
D792,704	S		7/2017	O'Connor	
D796,800	S		9/2017	Chang	
D799,180	S		10/2017	Sokol	
D799,807	S		10/2017	Sokol	
D802,284	S		11/2017	McCullagh	
D809,763	S	*	2/2018	Martin	D2/972
D816,956	S		5/2018	Sokol	
D817,624	S		5/2018	Cornelius et al.	
D820,576	S	*	6/2018	Thornhill	D2/972
D821,711	S	*	7/2018	Ford	D2/947
D821,728	S		7/2018	Sokol	
D823,579	S	*	7/2018	Sokol	D2/947
D825,171	S	*	8/2018	Hardman	D2/973
D827,266	S	*	9/2018	Stauffer	D2/947
D827,277	S		9/2018	Williams, Jr.	
D829,428	S		10/2018	de Montgolfier et al.	
D829,432	S		10/2018	Sokol	
D830,679	S		10/2018	Durand et al.	
D850,779	S	*	6/2019	Sokol	D2/973
D853,093	S		7/2019	Young	
D860,620	S		9/2019	Reyes	
D862,055	S		10/2019	Petrie	
D863,751	S		10/2019	Seamarks	
D863,832	S		10/2019	Citterio	
D868,437	S		12/2019	Sokol	
D868,438	S		12/2019	Sokol	
D868,439	S		12/2019	Sokol	
D872,982	S		1/2020	Kuerbis	
D877,465	S	*	3/2020	Hartmann	D2/902
D884,322	S		5/2020	Sokol	
D894,552	S		9/2020	Gerig	
D894,584	S		9/2020	de Montgolfier	
D895,240	S		9/2020	Schultze	
D895,260	S		9/2020	Hernandez	
D895,953	S		9/2020	Hernandez	
D896,485	S	*	9/2020	Williams	D2/947
D900,441	S	*	11/2020	Avar	D2/947
D900,462	S		11/2020	Brunner	
D905,945	S		12/2020	Sfreda et al.	
D906,649	S		1/2021	Odinot et al.	
D906,651	S		1/2021	O'Connor	
D907,342	S		1/2021	Odinot et al.	
D911,014	S		2/2021	Belhacene	
D911,015	S	*	2/2021	Belhacene	D2/972
D915,751	S	*	4/2021	Sokol	D2/947
D925,205	S		7/2021	Schenone	
D947,519	S		4/2022	Witherow	
D953,725	S	*	6/2022	Seamarks	D2/972
D957,794	S	*	7/2022	Lin	D2/960
D959,116	S		8/2022	Storch	
D974,735	S	*	1/2023	Lesecq	D2/972
D979,194	S	*	2/2023	Nethongkome	D2/947
D983,499	S	*	4/2023	Nethongkome	D2/947
D983,508	S		4/2023	Nethongkome	
D983,509	S		4/2023	Nethongkome	
D985,912	S		5/2023	Lai	
D987,955	S	*	6/2023	de Montgolfier	D2/947
D988,655	S	*	6/2023	Reyes	D2/972
D990,862	S	*	7/2023	Klump	D2/972
D999,488	S	*	9/2023	Chen	D2/907
D1,000,088	S		10/2023	Page	
D1,004,937	S	*	11/2023	Nethongkome	D2/972
D1,007,836	S	*	12/2023	Bidal	D2/972
D1,013,344	S	*	2/2024	Frantz	D2/947
D1,016,446	S	*	3/2024	Popovic	D2/947
D1,018,012	S	*	3/2024	Walker	D2/972
D1,025,581	S	*	5/2024	Petrie	D2/972
D1,033,807	S	*	7/2024	Jones	D2/947
D1,033,858	S		7/2024	Strek	
D1,033,859	S		7/2024	Strek	
D1,036,076	S	*	7/2024	Jones	D2/947
D1,044,250	S	*	10/2024	Lin	D2/973

D1,048,689	S	*	10/2024	Jones	D2/972
D1,054,176	S	*	12/2024	Lee	D2/947
D1,054,687	S		12/2024	Winfield	
D1,054,688	S		12/2024	Happer	
D1,059,751	S		2/2025	Odinot	
D1,060,951	S	*	2/2025	Jones	D2/972
D1,060,988	S	*	2/2025	Kuerbis	D2/972
D1,069,385	S	*	4/2025	de Montgolfier	D2/972
D1,070,326	S	*	4/2025	Sebastian	D2/977
D1,070,327	S	*	4/2025	Sebastian	D2/977
D1,071,525	S	*	4/2025	Becker	D2/972
2014/0101824	A1	*	4/2014	Spanks	A61F 13/08 2/239

OTHER PUBLICATIONS

Under Armour Men's TriBase Reign 3NM Running Shoes, Amazon.com, [online], [website visited May 12, 2025]. <URL: <https://us.amazon.com/Under-Armour-TriBase-Concrete-Footwear/dp/B09HTZ4FWW>> (Year: 2024).*

New Balance Men's FuelCell Propel V5 Running Shoe, Amazon.ca, [online], [website visited May 12, 2025]. <URL: <https://www.amazon.ca/New-Balance-FuelCell-Propel-Running/dp/B0CGKKXM3L>> (Year: 2024).*

Nike Shoe Products Published Prior to 2023.

"Nike MetCon 1—Apr. 2015 Releases"; sneakernews.com; retrieved Jan. 30, 2025; published Mar. 30, 2015; URL: <<https://sneakernews.com/2015/03/30/nike-metcon-1-april-2015-releases/>>.

"Nike Introduces Metcon 3; Now With Flyknit; For All Your Training Needs"; sneakernews.com; retrieved Jan. 30, 2025; published Dec. 13, 2016; URL: <<https://sneakernews.com/2016/12/13/nike-metcon-3-flyknit-unveiled/>>.

"The New Nike Metcon 6 Is the Brand's Best All-Around CrossFit Shoe Yet"; menshealth.com; retrieved Jan. 30, 2025; published Sep. 9, 2020; URL: <<https://www.menshealth.com/fitness/a33970405/nike-metcon-6-review/>>.

"Effortless Slip-On CrossFit Shoe: Nike Metcon 6 FlyEase Review"; gearjunkie.com; retrieved Jan. 30, 2025; published Jan. 26, 2021; URL: <<https://gearjunkie.com/footwear/effortless-slip-on-crossfit-shoe-nike-metcon-6-flyease-review/>>.

"Nike To Release The Special Edition MetCon 4 In Two Colorways"; sneakernews.com; retrieved Jan. 30, 2025; published Feb. 11, 2018; URL: <<https://sneakernews.com/2018/02/11/nike-special-edition-metcon-4-release-info/>>.

"Nike's Upcoming Metcon 2 Is 'Strong As Steel'"; sneakernews.com; retrieved Jan. 30, 2025; published Mar. 15, 2016; URL: <<https://sneakernews.com/2016/03/15/nikes-upcoming-metcon-2-is-strong-as-steel/>>.

"The Nike Metcon 5+ Gets Another 'Banned' Treatment"; sneakernews.com; retrieved Jan. 30, 2025; published Jul. 25, 2019; URL: <<https://sneakernews.com/2019/07/25/nike-metcon-5-banned-release-info/>>.

"The Nike Metcon 7 Releases Soon"; sneakernews.com; retrieved Jan. 30, 2025; published Jun. 28, 2021; URL: <<https://sneakernews.com/2021/06/28/nike-metcon-7-release-date/>>.

"Nike Metcon 9"; nike.com; retrieved Jan. 30, 2025; published date unknown; URL: <<https://www.nike.com/t/metcon-9-mens-workout-shoes-Tc42zx/DZ2617-401>>.

"Nike Metcon 8"; nike.com/ph; retrieved Feb. 6, 2025; published date unknown; URL: <<https://www.nike.com/ph/t/metcon-8-workout-shoes-p9rQzn>>.

"Nike Air Max 2014—Gamma Blue"; kicksonfire.com; retrieved Jan. 30, 2025; published date unknown; URL: <<https://www.kicksonfire.com/nike-air-max-2014-gamma-blue>>.

"Upcoming Colorways of the Nike Metcon 1 Trainer"; sneakernews.com; retrieved Jan. 30, 2025; published Feb. 2, 2015; URL: <<https://sneakernews.com/2015/02/02/upcoming-colorways-nike-metcon-1-trainer/>>.

"Nike Adds Free Cushioning To The Metcon Series"; sneakernews.com; retrieved Jan. 30, 2025; published Mar. 13, 2018; URL: <<https://sneakernews.com/2018/03/13/nike-free-metcon-release-info/>>.

(56)

References Cited**OTHER PUBLICATIONS**

“Nike Free Metcon 3—Training Shoe Review”; fitatmidlife.com; retrieved Jan. 30, 2025; published Mar. 29, 2020; URL: <<https://fitatmidlife.com/nike-free-metcon-3-training-shoe-review/>>.

“Nike Free X Metcon 2”; nike.com/si; retrieved Feb. 6, 2025; published date unknown; URL: <<https://www.nike.com/si/t/free-metcon-2-training-shoe-894sjn/CD8526-100>>.

“Nike Free Metcon 3”; farfetch.com/il; retrieved Feb. 6, 2025; published date unknown; URL: <<https://www.farfetch.com/il/shopping/women/nike-free-metcon-3-sneakers-item-19659303.aspx>>.

“Nike Free Metcon 4”; ebay.com; retrieved Feb. 6, 2025; published date unknown; URL: <<https://www.ebay.com/itm/404268021190>>.

“Nike Metcon 8 Black Light Thistle 2022”; ebay.com; retrieved Feb. 6, 2025; published date unknown; URL: <<https://www.ebay.com/itm/387089358286>>.

“Nike M Air Zoom TR 1”; top4running.com; retrieved Feb. 6, 2025; published date unknown; URL: <<https://top4running.com/p/nike-m-air-zoom-tr-1-dx9016-002>>.

“Nike Air Max 90 LV8”; nike.com; retrieved Jan. 30, 2025; published date unknown; URL: <<https://www.nike.com/t/air-max-90-lv8-shoes-4splTJ/HQ3497-100>>.

“Nike MC Trainer 3”; nike.com; retrieved Jan. 30, 2025; published date unknown; URL: <<https://www.nike.com/t/mc-trainer-3-womens-workout-shoes-ZGB0m2Fk/FQ1830-100>>.

“New Balance FuelCell Speedrift EnergyStreak Review: A Mysterious Surprise Pebax Plated Light Trainer”; roadtrailrun.com; retrieved Jan. 30, 2025; published Aug. 14, 2020; URL: <https://www.roadtrailrun.com/2020/08/new-balance-speedrift-energystreak.html#google_vignette>.

“Nike Free RN Flyknit: Join the Running Revolution”; fleetfeet.com; retrieved Jan. 30, 2025; published Apr. 8, 2016; URL: <<https://www.fleetfeet.com/s/chicago/news/nike-free-rn-flyknit-join-the-running-revolution>>.

“Running shoes Nike Free RN Distance 2”; top4running.com; retrieved Jan. 30, 2025; published date unknown; URL: <<https://top4running.com/p/nike-free-rn-distance-2-863775-400>>.

“Nike PS8 SB ‘Electric Pack’ 2024”; goat.com; retrieved Jan. 30, 2025; published date unknown; URL: <<https://www.goat.com/sneakers/ps8-sb-safari-olympics-fn0374-001>>.

“Nike Winflo 11 Gore-Tex”; nike.com; retrieved Jan. 30, 2025; published date unknown; URL: <<https://www.nike.com/t/wio-11-gore-tex-mens-waterproof-road-running-shoes-MzXR62/FQ1358-004>>.

* cited by examiner

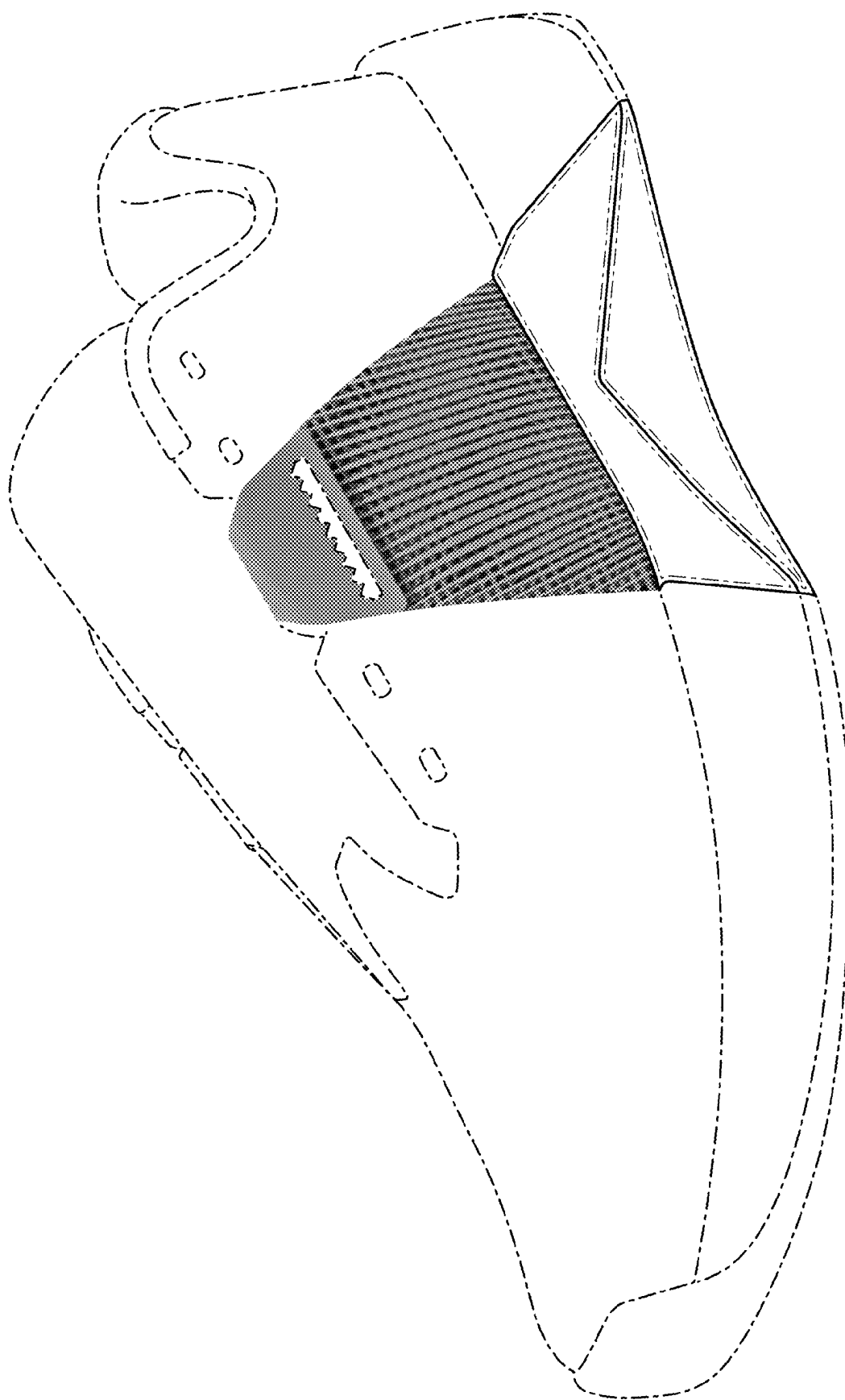


FIG. 1

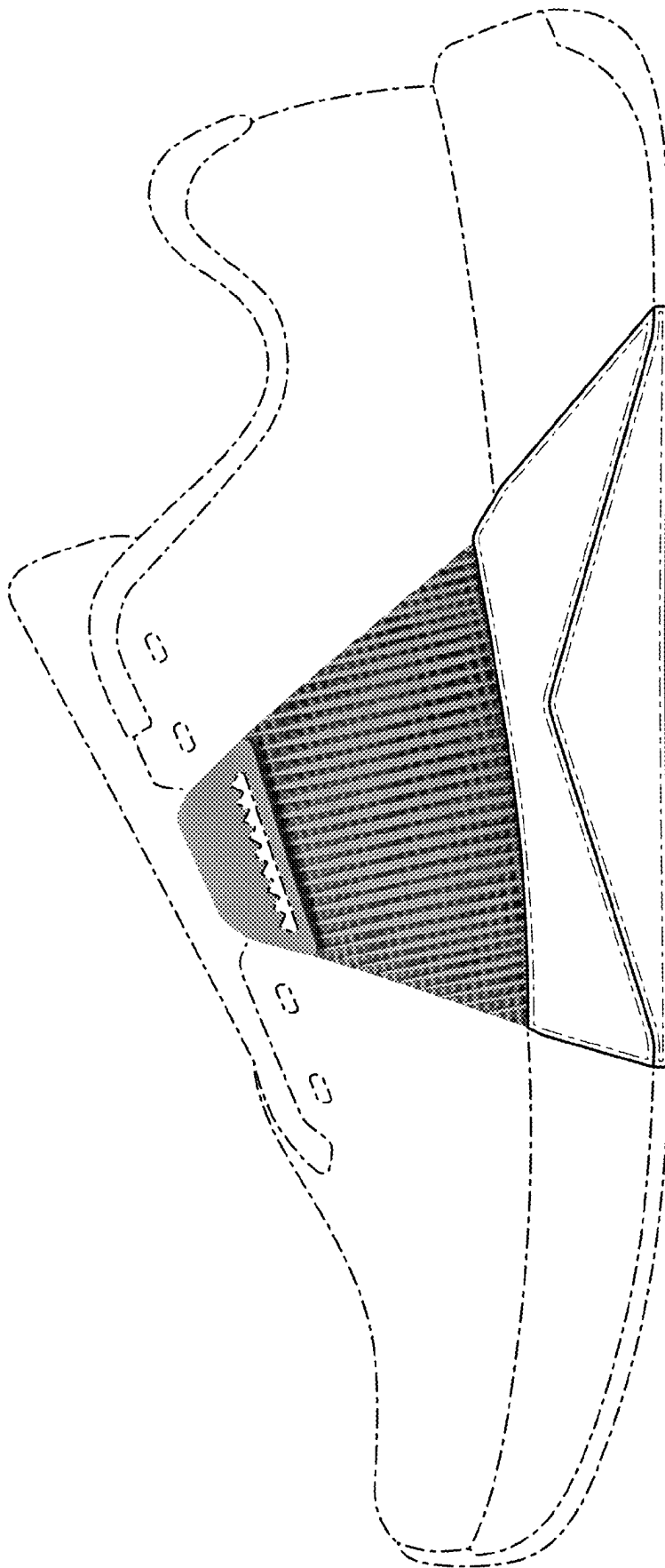


FIG. 2

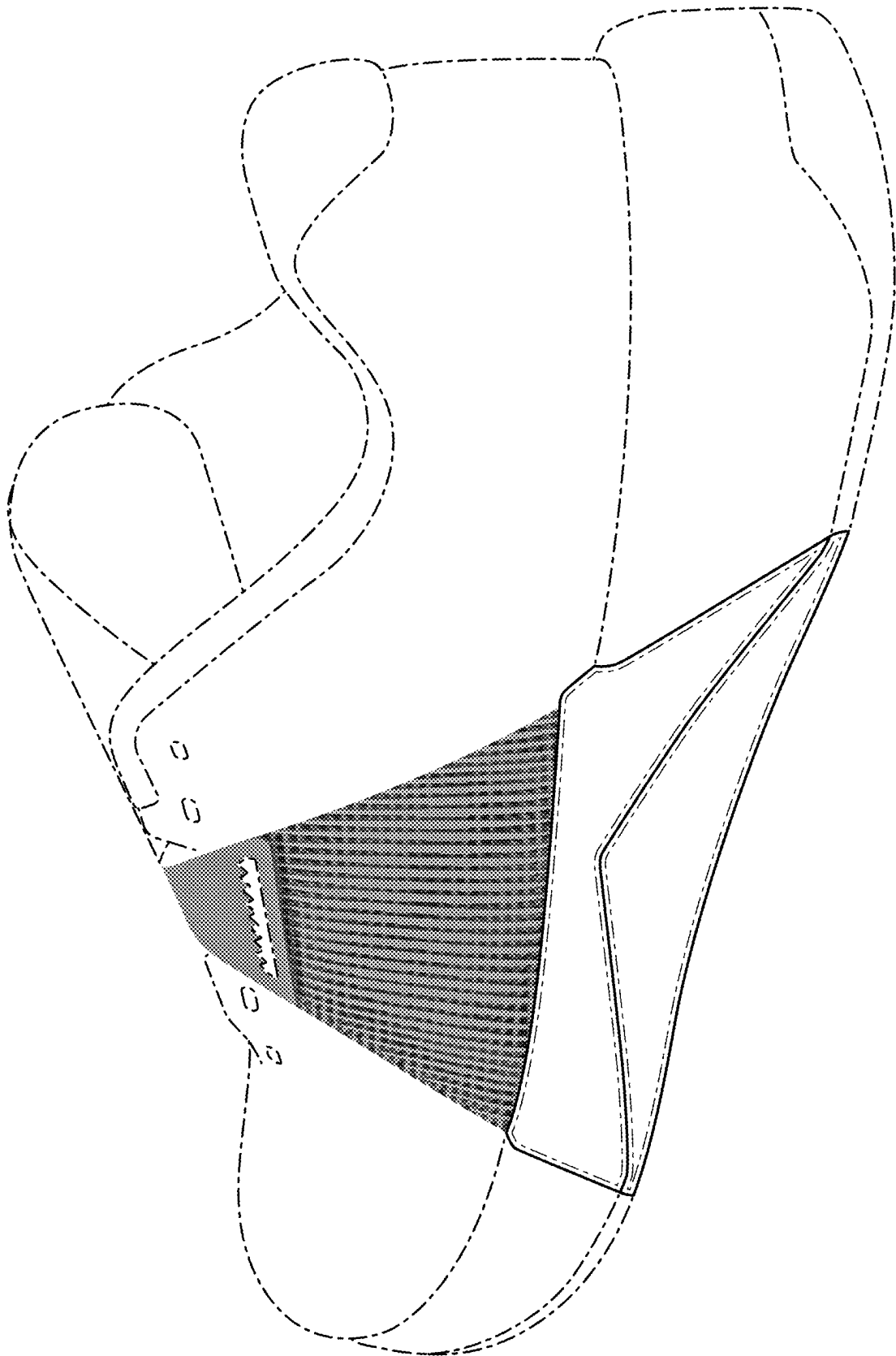


FIG. 3